

RE: Cottonwood – open diligence items

From: J. Feld (Seller's counsel)
To: Buyer diligence team
Date: September 25, 2026

Team, a few responses on open items:

1. Beginning of construction: the independent engineer has confirmed December 22, 2025 based on off-site physical work on the custom transformer under the binding contract dated December 10, 2025; see its report.
2. Apprenticeship: the compliance report shows 16.0% apprentice labor hours against the 15% requirement; no cure payment is needed.
3. Module supplier certification: delivered August 21, 2026 and included in the certification packet.

Best, Jordan